

Amended Excerpts

1. Line 8 through 14:

- 8 →defines terms;
- 9 →requires a health care facility to allow a patient to use non-medical transportation to
- 10 another health care facility under certain circumstances;
- 11 →requires a health care facility to provide a notice ~~to~~ → [-**and assist in arranging the**
- 11a **transportation**] ←~~to~~ ;
- 12 →enacts provisions for admissions and billing for a receiving health care facility; and
- 13 →enacts liability protections for originating health care facilities and health care providers
- 14 under certain circumstances.

2. Line 24 through 32:

- 24 Section **26B-2-244**. is enacted to read:
- 25 **26B-2-244** Non-medical transport -- Receiving health care facility requirements.
- 26 (1) As used in this section:
- 27 (a) ~~to~~ → "**Adequate time**" means:
- 27a **(i) for an originating facility located in a county of the fourth, fifth, or sixth class**
- 27b **as classified under Section 17-60-104, four hours of being discharged by the**
- 27c **originating facility; or**
- 27d **(ii) for an originating facility not described in Subsection (1)(a)(i), two hours of**
- 27e **being discharged by the originating facility.**
- 27f **(b) ←~~to~~ "Ambulance transportation" means transportation provided by a person**
- 27g **licensed**
- 28 **under Title 53, Chapter 2d, Emergency Medical Services Act.**
- 29 ~~to~~ → [{**(b)**}]**(c)** ←~~to~~ "Health care provider" means:
- 30 **(i) a physician licensed under Title 58, Chapter 67, Utah Medical Practice Act, or**
- 31 **Title 58, Chapter 68, Utah Osteopathic Medical Practice Act;**
- 32 **(ii) a physician assistant licensed under Title 58, Chapter 70a, Utah Physician**

3. Line 33 through 39:

- 33 **Assistant Act; or**
- 34 **(iii) an advanced practice registered nurse licensed under Subsection**
- 35 **58-31b-301(2)(e).**

36 $\hat{H} \rightarrow [\{ \textcolor{blue}{(e)} \}] \textcolor{red}{(d)} \leftarrow \hat{H}$ "Interfacility transfer" means the transferring of a patient between
36a an originating
37 facility and a receiving facility.

38 $\hat{H} \rightarrow [\{ \textcolor{blue}{(d)} \}] \textcolor{red}{(e)} \leftarrow \hat{H}$ (i) "Non-medical transportation" means transportation that does
38a not:
39 (A) provide medical services during transport; or

4. *Line 40 through 47:*

40 (B) employ or provide trained medical personnel for transporting an individual.
41 (ii) "Non-medical transportation" includes transportation provided by a family
42 member or public transit.

43 $\hat{H} \rightarrow [\{ \textcolor{blue}{(e)} \}] \textcolor{red}{(f)} \leftarrow \hat{H}$ "Originating facility" means a health care facility where a patient
43a is currently
44 admitted or being treated.

45 $\hat{H} \rightarrow [\{ \textcolor{blue}{(f)} \}] \textcolor{red}{(g)} \leftarrow \hat{H}$ "Receiving facility" means a health care facility that will receive a
45a patient from an
46 originating facility.

47 (2) A health care facility shall allow a patient to use non-medical transportation for an

5. *Line 53 through 63:*

53 (i) the patient is not in a condition described in Section 53-2d-405; and
54 (ii) the patient's current medical and mental condition does not require ambulance
55 transportation to the receiving facility; and
56 (c) the transfer would not violate $\hat{H} \rightarrow$ **the federal Emergency Medical Treatment and**
56a **Labor Act described in** $\leftarrow \hat{H}$ 42 U.S.C. Sec. 1395dd.

57 (3) A patient may request that a health care facility or health care provider determine
58 whether the patient is eligible to use non-medical transportation under Subsection (2).

59 (4) For a patient eligible to use non-medical transportation for an interfacility transfer, the
60 health care facility shall provide a written notice $\hat{H} \rightarrow$ **to the patient** $\leftarrow \hat{H}$ that states:

61 (a) the patient's medical and mental condition does not meet medical necessity for
62 ambulance transportation;

63 (b) insurance may elect not to cover the charges for ambulance transportation;

6. *Line 64 through 70:*

64 (c) the patient may be responsible for the cost of ambulance transportation; and

65 (d) the current transportation rate and mileage rate established under Section 53-2d-503.

66 (5) If a patient uses non-medical transportation as described in this section and arrives at the
67 receiving facility within $\hat{H} \rightarrow [\{ \text{two hours of being discharged by the originating facility} \}]$
67a adequate time $\leftarrow \hat{H}$, the
68 receiving facility may not:
69 (a) charge the patient or the patient's insurance or other health benefit plan for admission
70 or readmission services unless medical staff have reason to believe the patient's